

28 May 2025 / ASM - DKT

29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

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By email

Dear Mesdames and Sirs,

The Secretariat of the International Court of Arbitration of the International Chamber of Commerce (“Secretariat”) acknowledges receipt of your Request for Arbitration (“Request”) dated 22 May 2025. Your Request was received on 22 May 2025. Pursuant to Article 4(2) of the ICC Rules of Arbitration in force as from 1 January 2021 (“Rules”), this arbitration commenced on that date.

The caption and reference of this arbitration are indicated above. Please ensure that the caption is accurate and include the reference **29534/ICA3** in all future correspondence.

In all future correspondence, any capitalised term not otherwise defined will have the meaning ascribed to it in the Rules and references to Articles of the Rules generally will appear as: “(Article ***)”.

ICC Case Connect

Your arbitration proceedings benefit from the International Court of Arbitration of the International Chamber of Commerce’s Dispute Resolution Services case management digital platform. You can find out more about ICC Case Connect at [ICC Case Connect Support](#).

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International Chamber of Commerce (ICC) | Secretariat of ICC International Court of Arbitration

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Throughout your arbitration proceedings, you will benefit from a dedicated case space to facilitate communications and document-sharing. Parties and arbitral tribunals are encouraged to make use of this centralised case environment, although they remain free to determine the extent to which they do so. ICC Case Connect will constitute the Secretariat's principal means of communication throughout the proceedings (Article 3(2)), therefore case users should envisage that some interaction with the platform will be necessary.

Following the notification of the Request by email, all persons indicated by Claimant as representing Respondents will receive an ICC Case Connect platform notification inviting them to access their dedicated case space.

All persons indicated as representing Claimant are encouraged to connect to ICC Case Connect promptly. We invite you to send all future correspondence and submissions via ICC Case Connect.

Contact your case management team and the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for assistance and technical support. Once you have received the email notification inviting you to access your case space from no-reply@iccwbo.org, you will be able to explore [ICC Case Connect](#).

Filing Fee

You indicated that we will soon receive payment of the non-refundable filing fee. We will inform you when we receive it.

VAT payable on ICC Administrative Expenses

As of 1 January 2021 and to the extent that value added tax ("VAT") is applicable, ICC administrative expenses will be subject to VAT. Accordingly, ICC administrative expenses may be increased by the corresponding amount at the prevailing rate as set out in the Explanatory Note on VAT Applicable on ICC Administrative Expenses ("Explanatory Note") available on the ICC website. The applicable rate under French tax law is currently 20%.

The Secretariat's requests for payment of the advance on costs will result in the issuance of invoices that will cover all amounts requested (i.e. amounts to cover ICC administrative expenses alongside the advance on arbitrators' fees and expenses). VAT will be charged and invoiced on the requested advance payments corresponding to the ICC administrative expenses, as per the principles set forth in the Explanatory Note.

Requirements under Article 4(4)

We have received an electronic version of the Request and the documents annexed thereto. Pursuant to Article 4 your Request will be notified to Respondents by email.

The Secretariat will notify the Request to Respondents upon receipt of the above-mentioned payment.

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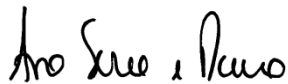
Your Case Management Team

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Please find enclosed a Note that highlights certain key features of ICC arbitration which also includes key features of the Expedited Procedure Provisions.

Finally, we invite you to visit our website at www.iccarbitration.org to learn more about our Dispute Resolution services.

Yours faithfully,



Ana Serra e Moura
Deputy Secretary General
ICC International Court of Arbitration

- encl. - ICC Rules of Arbitration ([click here to download them](#))
- Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration ([click here to download it](#))
- Explanatory Note on VAT Applicable on ICC Administrative Expenses available on the ICC website ([click here to download it](#))